

# IN THE SUPREME COURT OF INDIA

## PARVIN KUMAR JAIN v. ANJU JAIN

*Citation: 2024 INSC 961 | Civil Appeal No. 14210 of 2024*  
*Bench: Hon'ble Justice Vikram Nath & Hon'ble Justice Prasanna B. Varale*  
*Date of Judgment: December 10, 2024*

### JUDGMENT & LEGAL PRINCIPLES

This judgment addresses key issues surrounding matrimonial disputes, dissolution of marriage on grounds of irretrievable breakdown under Article 142 of the Constitution, and the independent nature of financial maintenance claims under Sections 24 and 26 of the Hindu Marriage Act, 1955.

### FACTUAL BACKGROUND

The parties were married for over two decades but had lived separately since 2004 due to irreconcilable differences. Multiple litigations including divorce petitions, maintenance applications, and child custody disputes were pending across various forums.

### RATIO DECIDENDI & COURT FINDINGS

- Article 142 & Irretrievable Breakdown:** Recognizing that the marital bond was beyond repair after 20 years of separation, the Supreme Court exercised its plenary powers under Article 142 of the Constitution of India to grant a decree of divorce to do complete justice.
- Survival of Maintenance Claims:** The Court established that maintenance claims under Sections 24 and 26 of the Hindu Marriage Act, 1955, are independent statutory remedies. The withdrawal or dismissal of the underlying matrimonial suit does not automatically terminate or negate pending claims for spousal or child maintenance.
- One-Time Settlement & Financial Provision:** The Court awarded a consolidated one-time settlement of Rs. 6 Crores (comprising Rs. 5 Crores towards permanent alimony for the wife and Rs. 1 Crore for higher education and maintenance of the son).

### ORDER & DISPOSITION

The Supreme Court dissolved the marriage, directed payment of the quantified permanent settlement within the specified timeline, and disposed of all connected proceedings.